

摘要：

马斯克与奥特曼的世纪庭审火药味十足：老马承认xAI蒸馏OpenAI模型，3800万兑现不足4%承诺，三天作证六次失态；Brockman日记曝光，嘴上喊使命手上算身家，硅谷兄弟情原形毕露。下周奥特曼亲上证人席，纳德拉、宫斗关键人物接连登台，好戏远未结束。

马斯克和奥特曼这场世纪庭审，瓜也太多了...

连着三天吃都吃不完的程度。



马斯克这边，公开承认xAI蒸馏了OpenAI的模型来训练Grok。

上午刚说完「我不对人大喊」，下午当庭大喊。

律师Savitt追问捐款：承诺10亿，到账3800万，兑现不足4%。

马斯克急了，当庭大声说：

「没有我，OpenAI就不存在！我贡献了我的声誉！我给这个公司起了名字！这些都是有价值的！」

随后被迫承认：「在严格的货币意义上，我捐了3800万美元。」

呃...老马你口风变得有点快啊...



但OpenAI这边黑料也不少，最炸的一条当属Brockman的日记。

2017年，他一边当面向马斯克保证「OpenAI会坚守非营利」，一边在私人日记里写：

「如果三个月后我们转成B公司（Benefit Corporation），那就是一个谎言。」

同一本日记里还算了一笔账：「在财务上，什么能让我身家达到10亿？」



NIK @ns123abc · Apr 30

Musk's lawyers just showed the jury the most damaging document in evidence on Brockman:

November 2017 Brockman writes in his private diary:

>"the true answer is that we want [musk] out... if three months later we're doing b-corp then it was a lie"

>"can't see us turning this



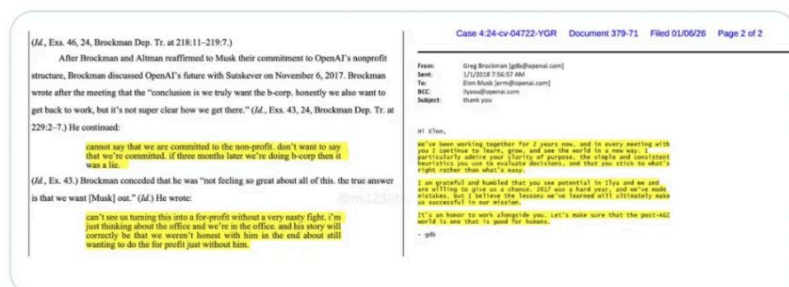
马斯克的律师刚刚向陪审团展示了对布洛克曼最不利的证据文件：

2017年11月，布洛克曼在他的私人日记中写道：

“真正的答案是我们想让马斯克离开.....如果三个月后我们又搞共益企业认证，那之前就是个谎言。”

“看不到我们扭转局面的可能性

Show more



405

2.1K

13K

1.7M

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嘴上说使命，手上算身家，这就是硅谷兄弟情？？？

所以你看，这场官司两边都不干净。



不过目前风向还是对马斯克更不利。他在证人席上坐了三天，原本是去证明OpenAI「偷了一个慈善机构」。

结果庭审进行到第五个小时，有旁听记者在笔记本里写下了这样一句话：

「我这辈子从未如此同情过山姆·奥特曼。」

究竟是谁偷了谁？

马斯克之所以费这么老大劲起诉OpenAI，就是为了证明一件事：

「他们偷了一个非营利组织」。



Elon Musk @elonmusk · Apr 28



They **stole** a nonprofit. It's not right.

他们窃取了一个非营利组织。这不公平。



9.4K

32K

274K

74M 公众号 · 量子位

2015年，马斯克出钱出名联合创立了OpenAI，一家立志不赚钱、为全人类开发AI的非营利机构。

现在他说，自己就是个「被愚弄的傻瓜」，捐了3800万美元的「免费资金」。

结果被奥特曼和Brockman转头拿去造了一个估值8500亿美元的营利公司。



Elon Musk @elonmusk · Apr 28



Scam Altman and Greg Stockman stole a charity. Full stop.

Greg got tens of billions of stock for himself and Scam got dozens of OpenAI side deals with a piece of the action for himself, Y Combinator style. After this lawsuit, Scam will also be awarded tens of billions in stock directly.

The fundamental question is simply this:

Do you want to set legal precedent in the United States that it is ok to loot a charity? If so, you undermine all charitable giving in the United States forever.

I could have started OpenAI as a for-profit corporation. Instead, I started it, funded it, recruited critical talent and taught them everything I know about how to make a startup successful FOR THE PUBLIC GOOD.

Then they stole the charity.

骗子奥特曼和格雷格·斯托克曼窃取了慈善机构的财产。就此打住。

格雷格为自己谋取了数百亿美元的股票，而斯卡姆则通过类似 Y Combinator 的模式，与 OpenAI 达成了数十项私下交易，从中分得一杯羹。这场诉讼结束后，斯卡姆还将直接获得数百亿美元的股票。

根本问题其实很简单：

你想在美国开创一个可以肆意掠夺慈善机构财产的法律先例吗？如果是这样，你将永远破坏美国所有的慈善捐赠活动。

公众号：量子位

现在，他索赔1500亿美元，要求法院阻止OpenAI在今年下半年IPO上市。



同时还要求罢免奥特曼在OpenAI非营利董事会的董事职务，并解除奥特曼和Brockman在OpenAI的职务。

马斯克在庭上反复用一个比喻来描述OpenAI的问题：「the tail is wagging the dog」（尾巴在摇狗）。

啥意思呢？

OpenAI最初的设计，是「非营利使命」这条狗，带着「营利子公司」这条尾巴——后者只是为了融资续命，服务于前者。

但现在反过来了。

营利子公司吸走了几乎所有的人才、资金、资源，ChatGPT的品牌价值、OpenAI的名气，全在为商业利益服务。

「非营利」只剩一个法律上的空壳，偶尔拿出来当招牌用一用。



同时，马斯克拿出了一条2022年的短信，这是他认为自己被骗的关键时间点。

微软那年宣布投资100亿，OpenAI估值一夜飙到200亿。

马斯克发消息给奥特曼：「这感觉像是**诱饵调包**（bait and switch）。」

意思是：当年你们用「非营利、为全人类」把我吸引进来，等公司做起来，才发现那件事从来不是你们真正想做的。

奥特曼回复：「我同意，感觉确实不好。」

这条短信被马斯克律师在庭上重点展示——奥特曼自己都说「感觉确实不好」，这不就是承认吗？



Ariel Givner @GivnerAriel · 14h

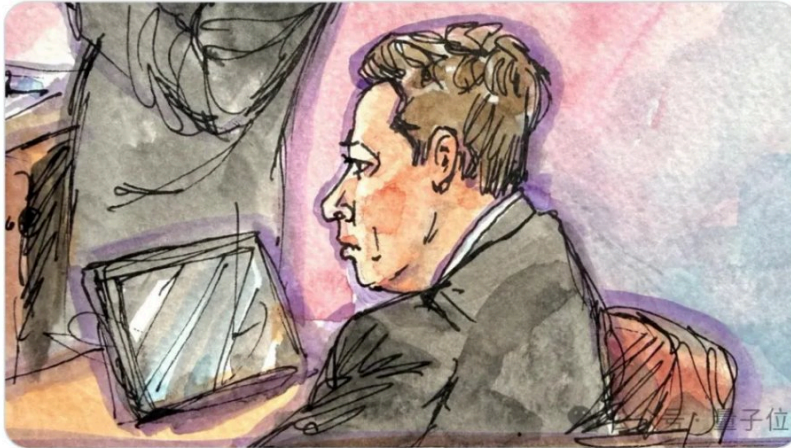


Here's your Day 3 recap of EVERYTHING that happened yesterday to prep for Day 4 (TODAY) of the **Musk v. OpenAI** trial.

ELON CROSS EXAMINATION:

- OpenAI lawyers hammered him on the 2017 power struggle he lost: board control demands, cutting off funding, and talent raids on OpenAI

[Show more](#)



但是OpenAI律师**William Savitt**拿出来的邮件，把故事讲成了另一个版本：

你自己2015年就想搞营利部门，2017年还偷偷注册了营利公司，现在来装什么受害者？

2015年，OpenAI还没正式宣布，马斯克就在内部邮件里提议要不要加一个营利实体。

2016年，他给自己公司同事写邮件说「把OpenAI设成非营利可能是个错误」。

2017年，他指示高级顾问偷偷以「OpenAI」名义注册了一家营利性公司，同时要求4个董事席位加51%股权——其他所有创始人加在一起只有3席。

From: "Elon Musk" <erm@spacex.com>
To: "Ilya Sutskever" [REDACTED]
Cc: "Greg Brockman" [REDACTED]
Subject: Re: Current State
Date: Wed, 13 Sep 2017 07:40:05 -0000
Importance: Normal

PLAINTIFF	United States District Court Northern District of California
	Case No. 4:24-CV-04722-YGR
	Case Title Musk et al. v. Altman et al.
	Exhibit No. 156
	Date Entered By: Mark Busby, Clerk Deputy Clerk

Sounds good. The three common stock seats (you, Greg and Sam) should be elected by common shareholders. They will de facto be yours, but not in the unlikely event that you lose the faith of a huge percentage of common stockholders over time or step away from the company by choice.

I think that the Preferred A investment round (supermajority me) should have the right to appoint four (not three) seats. I would not expect to appoint them immediately, but, like I said I would unequivocally have initial control of the company, but this will change quickly. The rough target would be to get to a 12 person board (probably more like 16 if this board really ends up deciding the fate of the world) where each board member has a deep understanding of technology, at least a basic understanding of AI and strong & sensible morals.

Apart from the Series A four and the Common three, there would likely be a board member with each new lead investor/ally. However the specific individual new board members can only be added if all but one existing board members agrees. Same for removing board members.

There will also be independent board members we want to add who aren't associated with an investor. Same rules apply: requires all but one of existing directors to add or remove.

I'm super tired and don't want to overcomplicate things, but this seems approx right. At the sixteen person board level, we would have 7/16 votes and I'd have a 25% influence, which is my min comfort level. That sounds about right to me. If everyone else we asked to join our board is truly against us, we should probably lose.

As mentioned, my experience with boards (assuming they consist of good, smart people) is that they are rational and reasonable. There is basically never a real hardcore battle where an individual board vote is pivotal, so this is almost certainly (sure hope so) going to be a moot point.

As a closing note, I've been really impressed with the quality of discussion with you guys on the equity and board stuff. I have a really good feeling about this.

Lmk if above seems reasonable.

Elon

> On Sep 12, 2017, at 11:44 PM, Ilya Sutskever [REDACTED] wrote:
>
> Hi Elon,
>
> To summarize our understanding of the current state:
>
> On equity:
>
> Greg: 10M grant/10M investment
> Sam: 10M grant/10M investment
> Ilya: 12M grant/2.5M investment + 5.5M loan from Greg securitized by Ilya's YC vested stock, from his work at OpenAI

Confidential

2024MUSK-0009240
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被拒之后，马斯克切断资助，把OpenAI的核心研究员Andrej Karpathy直接挖去了特斯拉。

对此马斯克在庭上声称：Karpathy本来就想离开OpenAI，我觉得人们有权利选择去哪里工作。。

On Jun 8, 2017, at 8:27 PM, Elon Musk <erm@tesla.com> wrote:

Just talked to Andrej and he accepted joining as Director of Tesla Vision, so anyone working on neural net software would report to him. Probable start date in a week or two.

Andrej is arguably the #2 guy in the world in computer vision after Ilya. The OpenAI guys are gonna want to kill me, but it had to be done...

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2018年，马斯克给其他创始人发邮件，说OpenAI「注定失败」，解决方案是并入特斯拉。

再次被拒后，马斯克退出了董事会。



2024年12月，扎克伯格主动给马斯克发消息：「Meta已致函加州总检察长，支持你对OpenAI的起诉。」

2025年2月，马斯克给扎克伯格发消息：「你愿不愿意跟我和其他一些人一起，联合竞标OpenAI的知识产权？」

马斯克说：「明天早上打。」

NIK @ns123abc · 12h

TEXTS BETWEEN MUSK AND ZUCKERBERG JUST SHOWN IN COURT

DECEMBER 13, 2024 Zuckerberg to Musk:

"Meta sent a letter to the California AG supporting your lawsuit against OpenAI."

FEBRUARY 3, 2025:

Zuckerberg: offers DOGE security help for Musk's team

Musk: ❤️

Musk: "Are you open

Case 4:24-cv-04722-YGR Document 454-3 Filed 03/27/26 Page 3 of 3

Messages in chronological order (times are shown in GMT -08:00)

1/2 Mark Zuckerberg [REDACTED] 12/13/2024, 4:24 PM
 Click heads up the news post about the California AG supporting your lawsuit against OpenAI. Someone else said leaked before the letter and it will be public in the next hour. Wanted to make sure you heard this first.

1/3 Elton Musk [REDACTED] 12/13/2024, 4:18 PM
 OK

1/4 Elton Musk [REDACTED] 12/13/2024, 4:20 PM
 I have an idea to try to get you that right, but let me know if there's a good time to call in the next few days.

1/5 Elton Musk [REDACTED] 12/13/2024, 4:20 PM
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1/6 Elton Musk [REDACTED] 12/13/2024, 4:20 PM
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1/7 Elton Musk [REDACTED] 12/13/2024, 4:20 PM
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1/67 Elton Musk [

小扎最终没有加入。七天后，马斯克独自出价974亿美元，要收购OpenAI。

在证人席上，马斯克宣誓说，他出这个价，是为了「阻止他们窃取慈善机构」。

但短信记录显示，他第一个念头是拉上Meta一起来联合竞标。

所以究竟是拯救慈善，还是抢夺资产？

Savitt的总结只有一句话：「他只支持非营利，前提是他自己在掌控。」

证人席三天，马斯克六次失态

值得玩味的是，OpenAI的首席律师William Savitt，是个非常会激怒马斯克的人。

Savitt是谁？



他曾经是马斯克的律师，帮他打过特斯拉的官司；后来又帮Twitter高管打赢了强制马斯克收购Twitter的官司。

结果现在，他站到了对面。没有人比他更了解怎么对付这个证人。

老马啊老马，你今天真是碰上对手了...

Savitt的策略不是用新证据攻击，而是专门用马斯克自己说过的话，来追杀马斯克今天的证词。

老熟人果真一击必杀，Savitt的盘问持续了两天，**马斯克失态了六次**。

现场陪审员互相使眼色，有人搔头，法官在某个时刻忍不住当庭笑场。



NIK @ns123abc · Apr 30

Musk vs OpenAI's lawyer — the cross-examination exchanges

William Savitt — Wachtell Lipton's lead defense lawyer, Supreme Court clerk, trained to break witnesses.

Savitt opens with a misleading premise.

Musk: "You're being misleading. What you're saying is false."

Savitt

[Show more](#)



861

3.5K

30K

4.8M

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第1次：承认离开的真正原因。

马斯克一直对外说，他2018年离开OpenAI董事会，是为了专注SpaceX和特斯拉，避免利益冲突。

Savitt不信，反复追问。马斯克的己方律师当庭反对，但法官允许继续。

最终马斯克被逼到角落，承认：他提出要掌握OpenAI的多数控制权，被其他创始人拒绝，然后他走了。

走，是因为没拿到他想要的，不是因为利益冲突。

第2次：「AI安全救世主」人设碰壁。

马斯克起诉的核心叙事之一，是他深切关心AI安全，而OpenAI背离了这个使命。

Savitt直接把xAI的安全记录拿出来摆在陪审团面前——

Grok曾经生成大量有害内容，xAI在安全测试和信息披露上的做法，跟马斯克在庭上标榜的「AI安全」相去甚远。

救世主的人设，对着自家产品有点说不过去啊...





Muskonomy @muskonomy · 11h



NEWS: OpenAI concludes its cross-examination of Elon Musk on day 4 of trial.

Attorney William Savitt finished his line of questioning by asking Elon Musk about a variety of initiatives at the OpenAI nonprofit, including different commitments and projects.

"I don't know

[Show more](#)



第3次：自己说的话，前后对不上。

这是整场盘问最激烈的时刻，也是庭审里气氛最剑拔弩张的一段。

事情的起点是一份2018年的术语表（*term sheet*）。

庭审当天，马斯克说他读了这份文件的开头部分，大致了解了内容。

Savitt随即播放了马斯克庭前证词的视频录像。

视频里的马斯克，被问到同一个问题，全程没有提过任何「读了开头」的说法。

两个版本的马斯克，就这样同时出现在陪审团面前。

马斯克急着解释：「我说的是没有仔细看，不是没读！」

这段争执持续了好几分钟，是马斯克在整场庭审中情绪最激动的时候之一。

第4次：骂人是「管理风格」。

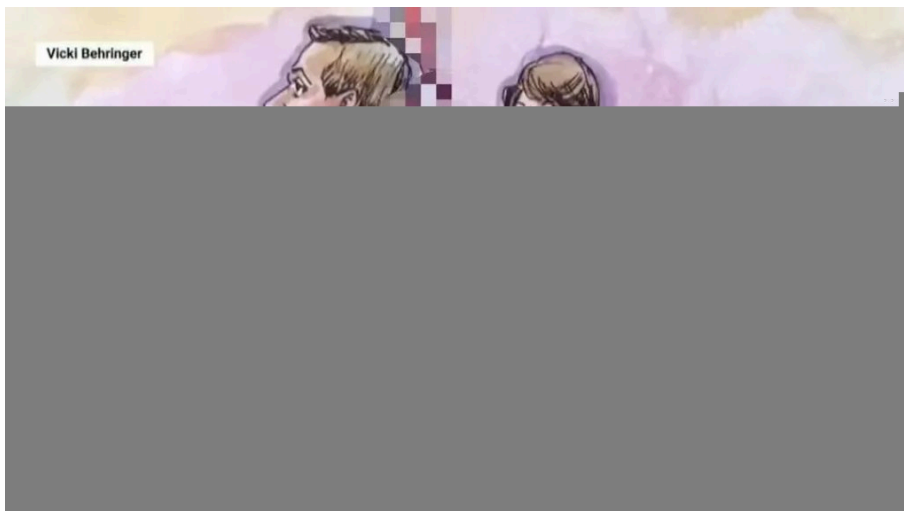
Savitt拿出证据，马斯克曾骂OpenAI的安全团队是「jackasses（蠢货）」。

马斯克的回应出人意料地淡定：这是他的「管理风格」。

他说自己的原则是「Don't be a jackass（别做蠢货）」，所以骂人jackass是在提醒对方改正，不算骂人。

嗯...现场陪审团的表情此刻应该是非常精彩。





第5次：不知道safety card，但xAI在发。

马斯克全程以AI安全捍卫者自居出庭。Savitt问他，知不知道「safety card」是什么。

马斯克说，不太确定。

Savitt解释：这是AI公司随模型发布的安全说明文件，用于披露模型能力、风险和安全测试结果，是行业基本的透明度标准。

马斯克的xAI，正在给Grok发safety card。

哈??

老马你起诉OpenAI不够安全，结果你不知道自己公司在用的安全文件叫什么名字???



第6次：上午刚说完自己不会大喊，下午就大喊。

上午，马斯克在主询中主动说了一句话：「我不会失去冷静，我不对人大喊。」

下午，Savitt继续追问术语表的事，两人争执升级。

马斯克当庭大喊：「我说的是没有仔细看！我读了标题！」

法官当场笑场，陪审员集体抬头。这句话和上午那句话，中间才隔了不到四个小时。

但是这还没完，更大的爆点还在后头。

马斯克公开承认了xAI蒸馏OpenAI模型来训练Grok。



Savitt问：xAI有没有用蒸馏技术从OpenAI模型提取知识，来训练Grok？

马斯克先打太极：「AI公司普遍都会互相蒸馏。」

Savitt追问：那是还是不是？

马斯克：「部分有。」

Yes or No...答案是or？？



OpenAI这边...也不干净

说了这么多马斯克的失态，但OpenAI也并非清白无可指摘。

首当其冲的就是Brockman的日记。

这本私人日记是在诉讼发现阶段被挖出来的，背景是2017年。

当时OpenAI烧钱烧得很凶，内部开始讨论要不要从非营利转成营利结构来融更多钱。

马斯克是最大金主，但他的条件是：要转营利可以，但我要控制权——51%股权、4个董事席位。

Brockman和奥特曼不想接受这个条件，但又不敢直接告诉马斯克「我们打算守住非营利了」。

所以他们的策略是：当面继续安抚马斯克、保证坚守非营利，私下另想出路。

Brockman在日记里写道：**「这是我们摆脱马斯克的唯一机会。」**

意思是，如果趁这次重组，把马斯克的条件拒掉，就能把他排除在公司未来的控制权之外，从此不用再受他制约。

同时，他其实也不确定马斯克适不适合当自己的老板，所以写下——**「他是我会选的'光荣领袖'吗？」**

日记里还有一条：**「在财务上，什么能让我身家达到10亿？接受马斯克的条件会摧毁两件事：我们的选择权.....以及经济回报。」**

这本日记被法官在今年1月的裁定中直接引用，作为「证据充分、应当开庭」的依据之一。

Brockman很快就要走上证人席，当庭解释这本日记。



NIK @ns123abc · 12h

MUSK V ALTMAN DAY 4 — LAST DAY OF WEEK 1



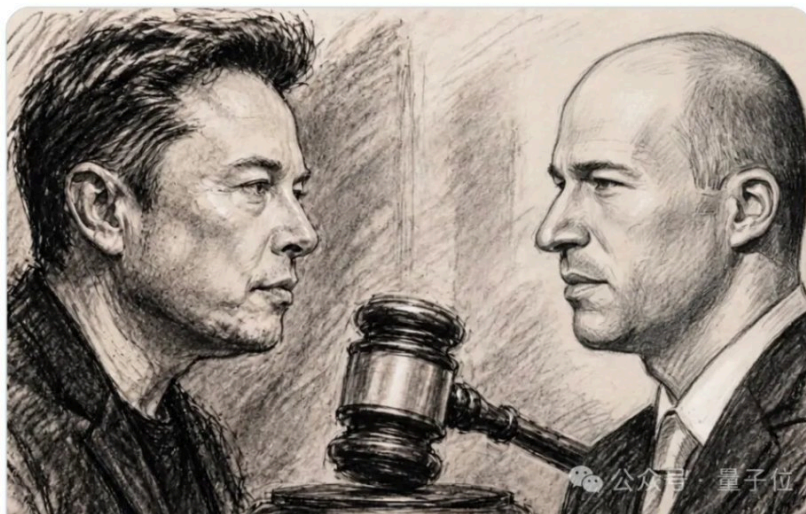
Musk, Altman, and Brockman all in the courtroom

- OpenAI's lawyer continues cross-examining Musk
- Microsoft's lawyer cross-examines Musk
- Musk's own lawyer cross-examines him

Musk's testimony ends today

Musk's family office

[Show more](#)



第二，奥特曼曾对马斯克说：「你是我的英雄」。

2023年2月，两人已经开始公开互撕。

但奥特曼私信马斯克写道：

「你是我的英雄……没有你我不认为OpenAI能成……但你公开攻击OpenAI真的让我很受伤。」

所以，奥特曼承认了马斯克的关键贡献，同时也暴露了自己在私下还在软化马斯克、公开却继续推进营利化的两面性。

还有更多证据浮出水面：

2015年10月，奥特曼发了一封邮件给马斯克，汇报OpenAI的筹备进展。

最后列出「对你的具体要求」：第一条，能否在未来5年内捐3000万美元？

马斯克的回复只有一句话：「我们来谈治理结构。这很关键。我不想资助一个最终走向错误方向的东西。」



From: Sam Altman <sam@ycombinator.com>
To: Elon Musk <erm@spacex.com>
Subject: Re: followup
Date: Mon, 19 Oct 2015 08:47:19 -0700
Importance: Normal

Happy to talk about it any time--very focused on getting this right!

Thanks--you were actually the main inspiration for that. We've had such a struggle getting our capital-intensive businesses funded (unless the founders were already rich from a previous startup) that we figured we should just do it ourselves.

On Mon, Oct 19, 2015 at 3:27 AM, Elon Musk <erm@spacex.com> wrote:

Let's discuss governance. This is critical. I don't want to fund something that goes in what turns out to be the wrong direction.

Btw, great move on the continuity fund!

On Oct 18, 2015, at 11:36 AM, Sam Altman <sam@ycombinator.com> wrote:

Good seeing you a couple of weeks ago.

@ns123abc

As discussed I think starting with a \$100MM commitment (and leaving the time unspecified) is the way to go.

Everyone we discussed but Gates is committed to donating. Hope to have him locked down next week. I am going to sit down with Zuck, but I still think it's probably too problematic given Facebook AI Research.

Two big new recruits that we expect to sign offer letters this week: John Schulman and Wojciech Zaremba.

Specific asks for you:

1) Can you donate \$30MM over the next 5 years?

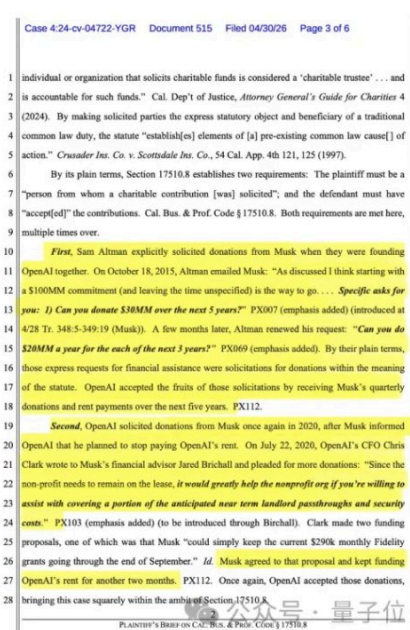
2) Can we call you an "advisor" but leave unspecified what you'll do in detail and figure it out as we go?

公众号·量子位

这封邮件现在成了法庭证据。

马斯克说它证明了他当时就强调过「方向」；OpenAI说它证明了奥特曼主动向马斯克募款，形成了法律意义上的慈善信托关系。

马斯克的律师同一天还向法官递交了一份法庭简报：



论点很清晰：加州法律规定，只要有人主动向你募捐，你接受了，这笔钱就必须用于募捐时声明的目的。

奥特曼2015年主动要钱、2020年再次要钱，马斯克都给了。

后来OpenAI搞营利化，违反的不只是道义承诺，而是法律义务。

官司还没结束，好戏还在后头

第一周结束，马斯克的证词落幕，攻守即将易位。

接下来还有重磅证人登场：

奥特曼下周登台，将是真正的正面对决，也是这场庭审最受期待的时刻。

在本周的三场庭审上，奥特曼坐在被告席面无表情，一言不发。

但等上了证人席，他会做何表现？

其次是**Greg Brockman**，他要当庭解释自己写过的日记。

还有微软CEO**纳德拉**，马斯克指控微软「协助OpenAI背叛慈善信托」——没有微软的钱，OpenAI没办法完成这次营利化转型，所以微软也是共谋。

签下130亿美元赌注的人，将要在奥克兰法庭向9个陪审员解释整个安排。

最后是**希冯·齐利斯**，她具有三重身份——前OpenAI董事、马斯克四个孩子的母亲、OpenAI方指控的内部信息泄露者。

所以硅谷连环宫斗剧究竟结局如何？

吃瓜已经迫不及待了...（搓手手





本文来源：[量子位](#)

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